

UNITED NATIONS ACT
(CHAPTER 339, SECTION 2(1))

UNITED NATIONS (ANTI-TERRORISM MEASURES)
REGULATIONS

ARRANGEMENT OF REGULATIONS

Regulation

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[13th November 2001]

Citation

1. These Regulations may be cited as the United Nations (Anti-Terrorism Measures) Regulations.

Object

2. The object of these Regulations is to assist in giving effect to Resolutions 1267 (1999), 1373 (2001), 1988 (2011), 1989 (2011) and 2253 (2015) of the Security Council of the United Nations.

[S 258/2021 wef 12/04/2021]

Application

3.—(1) These Regulations do not apply to —

- (a) any financial institution or class of financial institutions to the extent that the financial institution or class of financial institutions is or may be subject to directions issued or treated as issued by the Monetary Authority of Singapore under section 15 of the Financial Services and Markets Act 2022, or regulations made or treated as made by the Monetary Authority of Singapore under section 192 of the Financial Services and Markets Act 2022 for the purposes of section 15 of that Act; and

[S 248/2023 wef 31/12/2021]

[S 248/2023 wef 28/04/2023]

- (b) any VCC or class of VCCs to the extent that the VCC or class of VCCs is or may be subject to the directions issued or regulations made by the Monetary Authority of Singapore under section 83 of the Variable Capital Companies Act 2018.

[S 248/2023 wef 31/12/2021]

(2) In paragraph (1)(b), “VCC” has the meaning given by section 2(1) of the Variable Capital Companies Act 2018.

[S 37/2020 wef 14/01/2020]

Definitions

4.—(1) In these Regulations —

“arms and related material” means any type of weapon, ammunition, military vehicle or military or paramilitary equipment, and includes their spare parts;

[Deleted by S 628/2013 wef 01/10/2013]

“property” means real or personal property, moveable or immovable, including a lease of immovable property as well as a right or interest in such property;

“Singapore ship” means a ship registered under Part II of the Merchant Shipping Act 1995;

[S 248/2023 wef 31/12/2021]

“terrorist” means any person who —

- (a) commits, or attempts to commit, any terrorist act; or
- (b) participates in or facilitates the commission of any terrorist act,

and includes any person referred to in the Schedule;

“terrorist act” means the use or threat of action —

(a) where the action —

- (i) involves serious violence against a person;
- (ii) involves serious damage to property;
- (iii) endangers a person’s life;
- (iv) creates a serious risk to the health or the safety of the public or a section of the public;
- (v) involves the use of firearms or explosives;
- (vi) involves releasing into the environment or any part thereof, or distributing or otherwise exposing the public or any part thereof to —
 - (A) any dangerous, hazardous, radioactive or harmful substance;
 - (B) any toxic chemical; or
 - (C) any microbial or other biological agent, or toxin;
- (vii) is designed to disrupt any public computer system or the provision of services directly related to communications infrastructure, banking and financial services, public

utilities, public transportation or public key infrastructure;

(viii) is designed to disrupt the provision of essential emergency services such as the police, civil defence and medical services; or

(ix) involves prejudice to public security or national defence; and

(b) where the use or threat is intended or reasonably regarded as intending to —

(i) influence the Government or any other government; or

(ii) intimidate the public or a section of the public.

(2) For the purposes of paragraph (1) —

(a) “action” includes action outside Singapore; and

(b) a reference to the public includes a reference to the public of a country or territory other than Singapore.

(3) In these Regulations, unless the context otherwise requires, any reference to “terrorist act” shall include any act referred to in regulation 8(2) or (3).

5. *[Deleted by S 628/2013 wef 01/10/2013]*

6. *[Deleted by S 628/2013 wef 01/10/2013]*

7. *[Deleted by S 628/2013 wef 01/10/2013]*

Prohibition against sale, supply, etc., of arms and related material to terrorists

7A. No person in Singapore and no citizen of Singapore outside Singapore shall, directly or indirectly, sell, supply, or export, ship or otherwise transfer any arms and related material, wherever situated, to any terrorist.

[S 258/2021 wef 12/04/2021]

Prohibition against carriage of arms and related material by Singapore ships and aircraft for terrorists

7B. No owner or master of a Singapore ship and no operator of an aircraft registered in Singapore shall, directly or indirectly, carry or cause or permit to be carried any arms and related material, wherever situated, for any terrorist.

Prohibition against provision of technical advice, assistance, etc., related to military activities of terrorists

7C. No person in Singapore and no citizen of Singapore outside Singapore shall, directly or indirectly, provide any terrorist with technical advice, assistance or training related to military activities.

Prohibition against false threats of terrorist acts

8.—(1) No person in Singapore and no citizen of Singapore outside Singapore shall communicate or make available by any means any information which he knows or believes to be false to another person with the intention of inducing in him or any other person a false belief that a terrorist act has been, is being or will be carried out.

(2) No person in Singapore and no citizen of Singapore outside Singapore shall place any article or substance in any place whatsoever with the intention of inducing in some other person a false belief that —

- (a) the article or substance is likely to explode or ignite and thereby cause personal injury or damage to property; or
- (b) the article contains or the substance consists of —
 - (i) any dangerous, hazardous, radioactive or harmful substance;
 - (ii) any toxic chemical; or
 - (iii) any microbial or other biological agent, or toxin, that is likely to cause death, disease or personal injury or damage to property.

(3) No person in Singapore and no citizen of Singapore outside Singapore shall despatch any article or substance by post, rail or any

other means whatever of sending things from one place to another with the intention of inducing in some other person a false belief that —

- (a) the article or substance is likely to explode or ignite and thereby cause personal injury or damage to property; or
- (b) the article contains or the substance consists of —
 - (i) any dangerous, hazardous, radioactive or harmful substance;
 - (ii) any toxic chemical; or
 - (iii) any microbial or other biological agent, or toxin, that is likely to cause death, disease or personal injury or damage to property.

(4) For the purposes of paragraphs (1), (2) and (3), a reference to a person inducing in any other person a false belief does not require the first-mentioned person to have any particular person in mind as the person in whom he intends to induce the false belief.

General prohibition

9. No person in Singapore and no citizen of Singapore outside Singapore shall knowingly do anything that causes, assists or promotes, or is intended to cause, assist or promote, any act or thing prohibited by regulation 7A, 7B, 7C or 8.

[S 628/2013 wef 01/10/2013]

Duty to provide information

10.—(1) Every person in Singapore, and every citizen of Singapore outside Singapore, who has information about any transaction or act prohibited by regulation 7A, 7B, 7C or 8, shall —

- (a) immediately inform the Commissioner of Police or any authorised person of that information; and
- (b) provide such further information relating to the transaction or act as the Commissioner of Police or authorised person may require.

(2) No criminal or civil proceedings shall lie against a person for any disclosure made in good faith under paragraph (1).

[S 258/2021 wef 12/04/2021]

(3) In this regulation —

“authorised person” means such person as the Minister may designate for the purposes of this regulation;

“Commissioner of Police” includes —

(a) any police officer; and

(b) any person authorised by the Commissioner of Police to act for him for the purposes of this regulation.

[S 258/2021 wef 12/04/2021]

[S 628/2013 wef 01/10/2013]

Offences

11. Any person in Singapore or any citizen of Singapore outside Singapore who contravenes regulation 7A, 7B, 7C, 8, 9 or 10(1) shall be guilty of an offence.

[S 628/2013 wef 01/10/2013]

Exemption

12. The Minister or a person designated by the Minister may, if he considers that it is appropriate to do so in the circumstances of the case and is consistent with the intention of the Security Council of the United Nations under Resolutions 1373 and 1390, by notice in writing exempt, subject to such conditions as he may specify —

(a) any person or class of persons; or

(b) any activity or class of activities,

from the operation of any or all provisions of these Regulations.

THE SCHEDULE

Regulation 4(1)

1. All individuals and entities belonging to or associated with the Taliban in the Taliban List, and all individuals and entities belonging to or associated with ISIL

THE SCHEDULE — *continued*

(Da'esh) or the Al-Qaida organization in the ISIL (Da'esh) and Al-Qaida Sanctions List, subject to the following conditions:

- (a) where any individual or entity is listed in the Previous Schedule with effect from the prescribed date, the individual or entity is taken to be referred to in this Schedule with effect from that prescribed date;
- (b) where any individual or entity is added to either of the Lists on or after 12 April 2021, the individual or entity is taken to be referred to in this Schedule with effect from the date immediately following the date of addition to the List;
- (c) where any individual or entity is removed from either of the Lists on or after 12 April 2021, the individual or entity is taken to be removed from this Schedule with effect from the date of removal from the List;
- (d) where the particulars of any individual or entity in either of the Lists are modified on or after 12 April 2021, they are taken to be modified for the purposes of this Schedule from the date immediately following the date of modification in the List.

2. In this Schedule, unless the context otherwise requires —

“1267/1989/2253 ISIL (Da'esh) and Al-Qaida Sanctions Committee” means the committee established pursuant to Resolutions 1267 (1999), 1989 (2011) and 2253 (2015);

“1988 Committee” means the committee established pursuant to Resolution 1988 (2011);

“ISIL (Da'esh) and Al-Qaida Sanctions List” means the List of individuals and entities belonging to or associated with ISIL (Da'esh) or the Al-Qaida organization, established and maintained by the 1267/1989/2253 ISIL (Da'esh) and Al-Qaida Sanctions Committee pursuant to Resolutions 1267 (1999), 1989 (2011) and 2253 (2015), which is updated from time to time by that Committee, and made available on the Internet through the official United Nations website at <http://www.un.org/>;

“Previous Schedule” means the Schedule to these Regulations in force immediately before 12 April 2021;

“Resolution 1267 (1999)” means Resolution 1267 (1999) of the Security Council of the United Nations concerning Al-Qaida and associated individuals and entities;

“Resolution 1988 (2011)” means Resolution 1988 (2011) of the Security Council of the United Nations concerning the Taliban and associated individuals and entities;

THE SCHEDULE — *continued*

“Resolution 1989 (2011)” means Resolution 1989 (2011) of the Security Council of the United Nations concerning Al-Qaida and associated individuals and entities;

“Resolution 2253 (2015)” means Resolution 2253 (2015) of the Security Council of the United Nations concerning ISIL (Da’esh) and Al-Qaida, and associated individuals and entities;

“Taliban List” means the List of individuals and entities belonging to or associated with the Taliban established and maintained pursuant to Resolution 1988 (2011), which is updated from time to time by the 1988 Committee, and made available on the Internet through the official United Nations website at <http://www.un.org/>.

[S 258/2021 wef 12/04/2021]

LEGISLATIVE HISTORY
UNITED NATIONS (ANTI-TERRORISM MEASURES)
REGULATIONS
(CHAPTER 339, RG 1)

This Legislative History is provided for the convenience of users of the United Nations (Anti-terrorism Measures) Regulations. It is not part of these Regulations.

1. G. N. No. S 561/2001 — United Nations (Anti-Terrorism Measures) Regulations 2001

Date of commencement : 13 November 2001

2. G. N. No. S 118/2002 — United Nations (Anti-Terrorism Measures) (Amendment) Regulations 2002

Date of commencement : 12 March 2002

3. G. N. No. S 249/2002 — United Nations (Anti-Terrorism Measures) (Amendment No. 2) Regulations 2002

Date of commencement : 25 May 2002

4. G. N. No. S 516/2002 — United Nations (Anti-Terrorism Measures) (Amendment No. 3) Regulations 2002

Date of commencement : 30 September 2002

5. G. N. No. S 564/2002 — United Nations (Anti-Terrorism Measures) (Amendment No. 4) Regulations 2002

Date of commencement : 2 November 2002

6. G. N. No. S 624/2002 — United Nations (Anti-Terrorism Measures) (Amendment No. 5) Regulations 2002

Date of commencement : 11 December 2002

7. 2003 Revised Edition — United Nations (Anti-terrorism Measures) Regulations

Date of operation : 31 January 2003

8. G. N. No. S 190/2003 — United Nations (Anti-Terrorism Measures) (Amendment) Regulations 2003

Date of commencement : 8 April 2003

9. G. N. No. S 353/2003 — United Nations (Anti-Terrorism Measures) (Amendment No. 2) Regulations 2003

Date of commencement : 25 July 2003

10. G. N. No. S 452/2003 — United Nations (Anti-Terrorism Measures) (Amendment No. 3) Regulations 2003

Date of commencement : 24 September 2003

11. G. N. No. S 607/2003 — United Nations (Anti-Terrorism Measures) (Amendment No. 4) Regulations 2003

Date of commencement : 23 December 2003

12. G. N. No. S 259/2004 — United Nations (Anti-Terrorism Measures) (Amendment) Regulations 2004

Date of commencement : 7 May 2004

13. G. N. No. S 735/2004 — United Nations (Anti-Terrorism Measures) (Amendment No. 2) Regulations 2004

Date of commencement : 10 December 2004

14. G. N. No. S 385/2005 — United Nations (Anti-Terrorism Measures) (Amendment) Regulations 2005

Date of commencement : 17 June 2005

15. G. N. No. S 667/2005 — United Nations (Anti-Terrorism Measures) (Amendment No. 2) Regulations 2005

Date of commencement : 21 October 2005

16. G.N. No. S 628/2013 — United Nations (Anti-Terrorism Measures) (Amendment) Regulations 2013

Date of commencement : 1 October 2013

17. G.N. No. S 37/2020 — United Nations (Anti-Terrorism Measures) (Amendment) Regulations 2020

Date of commencement : 14 January 2020

18. G.N. No. S 258/2021 — United Nations (Anti-Terrorism Measures) (Amendment) Regulations 2021

Date of commencement : 12 April 2021

19. G.N. No. S 248/2023 — United Nations (Miscellaneous Amendments) Regulations 2023

Date of commencement : 31 December 2021

20. G.N. No. S 248/2023 — United Nations (Miscellaneous Amendments) Regulations 2023

Date of commencement : 28 April 2023